FICTIONAL SAMPLE. Not a real case, not filed with any court, and not legal advice.

SUPERIOR COURT OF WASHINGTON FOR EVERGREEN COUNTY

In re the Marriage of: ELENA RIVERA,	**No. 00-3-00000-0 SAMPLE**
Petitioner,	**PETITIONER'S TRIAL BRIEF ON THE LAKE CABIN**
v.	
THOMAS RIVERA,	
Respondent.	

I. RELIEF REQUESTED

Petitioner Elena Rivera asks the Court to characterize the Pine Lake cabin as her separate property, to award it to her, and to limit any community claim to a fair credit for the $18,000 roof paid for with community funds.

II. STATEMENT OF FACTS

The parties married on June 7, 2014. Ms. Rivera's aunt died in 2016. By order of distribution dated September 12, 2016, the estate distributed the Pine Lake cabin to Ms. Rivera alone. **Ex. A**.

In 2019, a title company recorded a corrective deed to fix an error in the legal description. The title company's form named the owners as "Elena Rivera and Thomas

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Rivera, spouses." **Ex. B** at 1. The corrective deed states that its only purpose is to correct the legal description. **Ex. B** at 1. Ms. Rivera signed no gift deed, no quitclaim deed, and no community property agreement.

In 2021, the parties replaced the roof for $18,000 from their joint account. **Ex. C** at 1. The family used the cabin most summers. The cabin was worth $210,000 in 2016 and $365,000 at the most recent appraisal. **Ex. C** at 2. The appraiser attributes $20,000 of the increase to the new roof and the rest to market conditions. **Ex. C** at 2.

III. ISSUES

1. Is the cabin Ms. Rivera's separate property even though Mr. Rivera's name appears on the 2019 corrective deed?

2. Is the increase in the cabin's value separate property?

3. What credit, if any, does the community have for the roof?

IV. EVIDENCE RELIED UPON

Ms. Rivera relies on her testimony at trial and proposed **Exhibits A** through C.

V. AUTHORITY

A. The Court considers the character of the property when it divides it.

The Court must make a just and equitable division, considering, among other factors, the nature and extent of the community property and the separate property. RCW 26.09.080. An accurate characterization is therefore the first step.

B. The cabin is separate property, and the name on a deed did not change that.

Property a spouse acquires during marriage by inheritance is separate property. RCW 26.16.010. Once property is shown to be separate, it is presumed to keep that character until direct and positive evidence shows otherwise. In re Estate of Borghi, 167 Wn.2d 480, 484, 219 P.3d 932 (2009) (lead opinion). That evidence must show the intent of the owning spouse to change the property's character, and it must be clear and convincing. Id. at 484-85 and n.4.

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In Borghi, the lead opinion refused to recognize any presumption from placing title in both spouses' names. It reaffirmed "the principle that the name on a deed or title does not determine the separate or community character of the property, or even provide much evidence." Id. at 488. See also In re Marriage of Skarbek, 100 Wn. App. 444, 448, 997 P.2d 447 (2000) (the spouse asserting a transfer to the community must prove it by clear and convincing evidence, usually a writing evidencing mutual intent).

The 2019 deed is weaker evidence than the deed in Borghi. It was prepared by a title company for a stated clerical purpose. **Ex. B** at 1. Mr. Rivera has no writing showing that Ms. Rivera meant to give him anything.

C. The increase in value is presumed separate.

"[A]ny increase in the value of separate property is presumed to be separate property." In re Marriage of Elam, 97 Wn.2d 811, 816, 650 P.2d 213 (1982). That presumption may be rebutted by direct and positive evidence that the increase is attributable to community funds or labor. Id. The appraiser attributes only $20,000 of the $155,000 increase to the roof. **Ex. C** at 2. The remaining $135,000 stays separate.

D. Any community credit is limited to the roof.

Ms. Rivera acknowledges that community funds paid for the roof. The most the community may claim under Elam is the value that those funds added, which is $20,000. The Court may also consider that the family enjoyed the cabin. A right to reimbursement may not arise if the contributing spouse received a reciprocal benefit from the use of the property. In re Marriage of Miracle, 101 Wn.2d 137, 139, 675 P.2d 1229 (1984).

VI. CONCLUSION

The Court should characterize the cabin and its market appreciation as Ms. Rivera's separate property, award the cabin to her, and limit any community credit to no more than the value the roof added.

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DATED this 3rd day of November, 2026.

/s/ Elena Rivera

_____

Elena Rivera, Petitioner Pro Se

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CERTIFICATE OF SERVICE

I declare that on November 3, 2026, I served a true and correct copy of this document on Thomas Rivera. I declare under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct.

DATED this 3rd day of November, 2026.

/s/ Elena Rivera

_____

Elena Rivera, Petitioner Pro Se

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EXHIBIT A

Order of Distribution, September 12, 2016

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SUPERIOR COURT OF WASHINGTON FOR EVERGREEN COUNTY

In re the Estate of Rosa Delgado, Deceased

ORDER OF DISTRIBUTION

The personal representative has completed the administration of this estate.

IT IS ORDERED that the following real property is distributed to Elena Rivera, niece of the decedent, as her sole and separate inheritance:

Cabin and lot at Pine Lake, Lot 14, Pine Lake Shores, Evergreen County, Washington.

Dated: September 12, 2016

/s/ Judge of the Superior Court (fictional)

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EXHIBIT B

2019 Corrective Deed

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CORRECTIVE DEED

Prepared by Lakeshore Title Services

Purpose: This deed is recorded only to correct the legal description in the instrument that vested title to the property below. It is not intended to convey any new interest.

Owners: Elena Rivera and Thomas Rivera, spouses

Corrected legal description: Lot 14, Block 2, Pine Lake Shores, Evergreen County, Washington.

Recorded: April 22, 2019

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EXHIBIT C

Roof invoice and appraisal summary

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SUMMIT PEAK ROOFING: INVOICE

Item	Amount
Tear-off and new roof, Pine Lake cabin	$18,000
Paid from joint checking, June 2021	$18,000

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APPRAISAL SUMMARY: Lot 14, Pine Lake Shores

Measure	Value
Value on distribution (2016)	$210,000
Current appraised value	$365,000
Total increase	$155,000
Increase from new roof	$20,000
Increase from market conditions	$135,000

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